

		address was confirmed as the client's current address within 30 days before filing or that the address is the client's last known address and that, after reasonable efforts within that period, counsel was unable to locate a more current address. The declaration also fails to satisfy Rules of Court, Rule 3.1362, subd. (d)(2), which requires that when a motion is served on the client electronically, the declaration must state that the electronic service address is the client's current electronic service address. Rules of Court, Rule 3.1362 further provides that: As used in this rule, "current" means that the address was confirmed within 30 days before the filing of the motion to be relieved. Merely demonstrating that the notice was sent to the client's last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current. If the service is by mail, Code of Civil Procedure section 1011(b) applies. No later than nine (9) court days before the continued hearing, Moving Counsel shall file and serve: (1) an amended or supplemental declaration that complies with Rules of Court, Rule 3.1362; and (2) an updated proposed order on Judicial Council form MC-053 that updates all current upcoming hearing information in Section 7. Client Doan may file a response or opposition no later than five (5) court days before the continued hearing. Moving Counsel shall provide notice of this ruling and continued hearing date on the client. <u>Case Management Conference</u> The Case Management Conference is continued to June 11, 2026, at 10 a.m. in this department. Plaintiff to give notice.
1:30 p.m.		
1	Esparza v. Almendarez	Defendant Nathan Alexander Almendarez's motion to tax costs by Plaintiff Jose Jesus Garcia Esparza is GRANTED in part and DENIED in part as set forth below. <u>Legal Standard</u> In general, the prevailing party is entitled as a matter of right to recover costs for suit in any action or proceeding. (Cal. Civ. Proc. Code §1032(b); <i>Santisas v. Goodin</i> (1998) 17 Cal.4th 599, 606; <i>Scott Co. Of Calif. v. Blount, Inc.</i> (1999) 20 Cal.4th 1103, 1108.) Allowable costs under Code of Civil Procedure section 1033.5 must be reasonably necessary to the conduct of the litigation, rather than merely convenient or beneficial to its preparation, and must be reasonable in amount. An item not specifically allowable under section 1033.5(a) nor prohibited under subdivision (b)

may nevertheless be recoverable in the discretion of the court if they meet the above requirements (i.e., reasonably necessary and reasonable in amount). (*Ladas v. California State Automotive Assoc.* (1993) 19 Cal.App.4th 761, 773-774.) If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. *Id.* at 773-774. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. *Id.*

The memorandum of costs must be filed and served "within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first." (Cal. Rules of Court, rule 3.1700(a)(1).) "Any notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum." (Cal. Rules of Court, rule 3.1700(b)(1).) "Unless objection is made to the entire cost memorandum, the motion to strike or tax costs must refer to each item objected to by the same number and appear in the same order as the corresponding cost item claimed on the memorandum of costs and must state why the item is objectionable." (Cal. Rules of Court, rule 3.1700(b)(2).)

Prejudgment Interest (\$42,171.16 sought to be stricken)

Defendant argues that Plaintiff is not entitled to prejudgment interest from the time Plaintiff served a § 998 offer on the grounds that the offer was invalid. Defendant argues that because Plaintiff's § 998 offer of \$75,000 exceeded Defendant's policy limits, the offer was unreasonable and not made in good faith.

In any action brought to recover damages for personal injury sustained by any person resulting from or occasioned by the tort of any other person, corporation, association, or partnership, whether by negligence or by willful intent of the other person, corporation, association, or partnership, and whether the injury was fatal or otherwise, it is lawful for the plaintiff in the complaint to claim interest on the damages alleged as provided in this section.

If the plaintiff makes an offer pursuant to Section 998 of the Code of Civil Procedure **which the defendant does not accept prior to trial** or within 30 days, whichever occurs first, and the plaintiff obtains a more favorable judgment, the judgment shall bear interest at the legal rate of 10 percent per annum calculated from the date of the plaintiff's first offer pursuant to Section 998 of the Code of Civil Procedure which is exceeded by the judgment, and interest shall accrue until the satisfaction of judgment.

(Civ. Code, § 3291.)

Pre-judgment interest is a recoverable cost, as it is "[a]ny other item that is required to be awarded to the prevailing party pursuant to statute as